REPUBLIC OF SOUTH AFRICA

National Assembly | Office of the Speaker

Portfolio Committees: Health | Employment & Labour | Trade, Industry & Competition | Justice & Correctional Services | SCOPA | Police

Parliamentary Evidence Bundle

Oversight Committees Referral: Regulatory Submissions to the CIPC, FSCA, and JSE

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Date of Submission: July 2026 | CONFIDENTIAL — WITHOUT PREJUDICE

Part A: Executive Overview

Purpose and Scope

This bundle documents a material divergence between the AfroCentric Group's statutory public disclosures — specifically the Integrated Annual Report (IAR) 2025 — and its documented internal operational conduct. The submission is structured to assist regulatory bodies and parliamentary committees in identifying specific statutory triggers, rather than requiring a sequential reading of the underlying dispute.

The evidence presented establishes a pattern of inconsistency between published corporate governance commitments and the operational reality experienced by a protected whistleblower and healthcare professional. The discrepancies are not presented as subjective grievances; they are anchored to verifiable documentary evidence indexed throughout this bundle.

Regulatory Scope of This Submission

This bundle has been prepared for concurrent submission to the following bodies:

Regulatory Body	Primary Statutory Basis
Companies & Intellectual Property Commission (CIPC)	Companies Act 71 of 2008 — ss. 162 & 214
Financial Sector Conduct Authority (FSCA)	Financial Markets Act 19 of 2012 — s. 81
Johannesburg Stock Exchange (JSE)	JSE Listings Requirements; King IV Report on Corporate Governance
National Parliament (Portfolio Committees)	Protected Disclosures Act 26 of 2000; Public Finance Management Act

Overall Bundle Architecture

The submission is organised into distinct, legally targeted sections rather than a sequential narrative:

1. Part A — Executive Overview: establishes the legal and financial stakes and maps the regulatory scope.
2. Part B — CIPC Submission: targets corporate governance failures and director liability under the Companies Act.
3. Part C — FSCA and JSE Submission: addresses market integrity, ESG disclosure accuracy, and investor protection.
4. Part D — Cross-Reference Statutory Matrix: the core evidentiary table mapping IAR 2025 public claims against documented operational conduct.
5. Part E — Forensic Audit Conclusion: synthesises the findings and defines the governance accountability sought.

> **Integrity Gap — Central Thesis**
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> *This analysis applies forensic clinical governance principles to corporate conduct. The evidence indicates that the Board and executive leadership presented a risk profile to stakeholders, regulators, and the JSE that does not accurately reflect the internal operational environment.*
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> *Documented across this bundle: whistleblower retaliation, statutory deduction violations, and the suppression of systemic institutional failures — none of which appear in the company's public disclosures.*

Part B: CIPC Submission — Corporate Governance & Director Liability

Application for Investigation in terms of Sections 162 and 214 of the Companies Act 71 of 2008

Statutory Framework

The CIPC is the designated enforcement body for the Companies Act 71 of 2008. This submission targets two specific provisions:

Provision	Application to This Matter
Section 214 — False Statements	Prohibits the inclusion of untrue or materially misleading information in any written statement or report published by or on behalf of a company.
Section 162 — Director Delinquency	Provides grounds for declaring a director delinquent where they have grossly abused their position, acted with gross negligence, or committed a wilful breach of fiduciary duty.

Board's Public Claims — IAR 2025

The following representations appear in the AfroCentric Group Integrated Annual Report 2025 and form the basis of the Section 214 and Section 162 analysis:

- "Mechanisms for reporting concerns include... an independent whistleblowing hotline... without fear of reprisal." (p. 21)
- "The Board maintains a zero-tolerance approach to unethical conduct." (p. 21)
- "No significant regulatory breaches or fines." (p. 21)
- "Our employee wellbeing strategy is underpinned by... emotional and mental wellbeing." (p. 82)
- "Rigorous Board oversight of risk management and internal controls." (General IAR claims)

Evidence of Governance Failure

I. Institutional Non-Response to Formal Notices

Formal humanitarian and governance notices submitted through proper channels received no substantive response for a period exceeding 30 days. The absence of any engagement during this period is inconsistent with the Board's published assertion of active oversight and ethical accountability mechanisms.

II. Obstruction of Internal Governance Access

Documentary evidence establishes that escalation pathways to the Board were actively obstructed at the executive level. A formal discrimination complaint submitted on 25 September 2025 was recorded in company correspondence as a "typo" and was not escalated in accordance with published policy. The responsible employee was not reassigned despite a formally documented hostile work environment.

III. Characterisation of Medical Evidence in Litigation

An opposing affidavit filed in the company's name characterised formally documented psychiatric illness as a "cynical excuse." This statement, endorsed by company legal representatives in proceedings, stands in direct contradiction to the IAR's stated commitment to employee mental health and ethical conduct in stakeholder engagement.

IV. The Board Oversight Nexus

The evidence supports one of two conclusions: either the Board was aware of these operational failures and omitted them from the IAR (engaging Section 214), or the Board's oversight mechanisms failed to surface them at all (engaging Section 162). In either case, the published IAR does not accurately represent the company's governance environment.

> **CIPC Referral Summary**
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> *The evidence bundle supports a formal investigation under ss. 162 and 214 of the Companies Act. The discrepancies between IAR 2025 disclosures and documented operational conduct are specific, traceable, and supported by contemporaneous documentary evidence indexed at Part D of this submission.*

Part C: FSCA & JSE Submission — Market Integrity & Disclosure Accuracy

Complaint Regarding Material Misrepresentation and Contravention of Section 81 of the Financial Markets Act 19 of 2012

Statutory Framework

Provision	Application to This Matter
FMA Section 81	Prohibits the making or publication of statements regarding a listed company that are false, misleading, or deceptive in any material respect.
JSE Listings Requirements	Require listed entities to provide integrated reporting that accurately reflects sustainability, risk management, and material stakeholder relationships.
King IV — Principle 1	Ethical leadership and corporate citizenship require that reported governance commitments reflect actual internal practices.

Market Disclosure Concerns

I. Inaccurate Risk Profile Presented to Investors

The 2025 IAR represents to investors and market participants that AfroCentric operates with stable regulatory relationships, a functioning internal ethics infrastructure, and no material outstanding regulatory matters. The documented evidentiary record contradicts each of these representations.

II. Patient Safety Risk — Undisclosed

An identified integration gap between the Gexus and DMS clinical systems created a patient safety exposure. A related CMS investigation had been pending for over 100 days at the time of the IAR's publication. This constitutes a material undisclosed operational and regulatory risk.

III. Unlawful Salary Deduction During Disclosed Medical Crisis

A deduction of 40.47% of gross salary was executed following a formally disclosed psychiatric crisis. This deduction is alleged to contravene Section 34(2) of the BCEA, which caps deductions without written consent. The IAR simultaneously claims a robust employee mental health and wellbeing strategy. The juxtaposition of these two facts represents a potentially misleading ESG disclosure.

IV. Regulatory Concentration Risk — Undisclosed

At the time of publication, 14 or more regulatory bodies had been formally engaged in matters relating to the company's conduct. This constitutes a regulatory concentration risk that has not been disclosed to the market. Investors relying on the IAR's representation of stable regulatory relationships were not in possession of material information.

> **FSCA / JSE Referral Summary**
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> *The publication of the IAR 2025 by AfroCentric, a JSE-listed entity, appears to contain representations that do not accurately reflect the company's regulatory exposure, internal governance environment, or labour compliance record.*
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> *This submission requests a formal review under FMA s. 81 and the JSE Listings Requirements. The specific contradictions are tabulated at Part D of this bundle.*

Part D: Cross-Reference Statutory Matrix

The table below maps specific claims from the AfroCentric IAR 2025 against the documented operational reality and the relevant statutory or regulatory reference. Each row identifies the evidentiary annexure that supports the contradiction.

IAR 2025 Public Claim	Documented Operational Reality	Evidentiary Annexure	Statutory / Regulatory Reference
"Mechanisms for reporting concerns include... an independent whistleblowing hotline... without fear of reprisal." (p. 21)	Patient safety concerns were administratively reframed as insubordination. Formal whistleblower protections were not applied.	Annexure A: Whistleblower Retaliation Timeline	Protected Disclosures Act 26 of 2000; King IV Principle 1
"The Board maintains a zero-tolerance approach to unethical conduct." (p. 21)	Formal discrimination complaint (25 Sep 2025) was not escalated; characterised in correspondence as a "typo". Hostile management environment was maintained.	Annexure B: Formal Complaint & HR Correspondence	Employment Equity Act; Companies Act s. 162
"Inclusive employment practices... equal participation." (p. 39)	Formal complaint of discriminatory treatment was dismissed without substantive investigation or remedial action.	Annexure B: Formal Complaint & HR Correspondence	Employment Equity Act s. 6; King IV Principle 8
"No significant regulatory breaches or fines." (p. 21)	At the time of publication, 14+ regulatory bodies had been formally notified of systemic failures, including the CMS and SAHRC.	Annexure D: Regulatory Notification Log	JSE Listings Requirements — Material Misrepresentation; FMA s. 81
"Our employee wellbeing strategy is underpinned by... emotional and mental wellbeing." (p. 82)	A deduction of 40.47% of gross salary was executed following a formally disclosed psychiatric crisis, with no written consent on file.	Annexure C: AOD Policy Email & LC Filing — BCEA s. 34	BCEA s. 34(2); FMA s. 81 — Misleading ESG Disclosure
"Continued engagement with policymakers and regulators." (IAR — Stakeholder Relations)	The documented record shows a pattern of non-response and deflection across multiple regulatory institutions over an extended period.	Annexure D: Regulatory Notification Log; Annexure E: Correspondence Timeline	JSE Listings Requirements; King IV Principle 16
"Rigorous Board oversight of risk management and internal controls." (General IAR Claims)	Formal governance escalations were blocked at executive level. The Board did not demonstrably engage with the matters raised over a period exceeding 30 days.	Annexure E: Escalation Correspondence	Companies Act s. 162 (Director Delinquency); s. 214 (False Statements)

Part E: Forensic Audit Conclusion

Synthesis of Findings

The evidence assembled in this bundle identifies a consistent pattern across multiple governance domains: public-facing commitments made in the IAR 2025 are not reflected in the documented operational conduct of the organisation. The discrepancies are not attributable to isolated administrative error; they are systematic and span employee relations, regulatory engagement, financial conduct, and clinical risk management.

Taken individually, each discrepancy might be characterised as an operational shortcoming. Viewed collectively and in the context of the statutory frameworks they engage, they represent a structural failure of corporate governance that warrants formal regulatory scrutiny.

Accountability Framework

Financial Markets Act — Investor Disclosure

Investors in AfroCentric securities were presented with an ESG and governance profile in the IAR 2025 that does not reflect the regulatory exposure, labour compliance record, or internal governance environment documented in this bundle. This is a matter of market integrity, independent of the underlying employment dispute.

Companies Act — Director Accountability

The documented failures of internal escalation and the characterisation of these failures in the IAR raise questions of director accountability under Sections 162 and 214. The Board's responsibility is to ensure that public disclosures accurately reflect the company's risk environment. The evidence suggests that responsibility was not discharged.

Parliamentary Oversight — Systemic Context

This matter is presented to the Portfolio Committees not as a singular labour dispute, but as an instance of the broader governance risks that arise when internal accountability mechanisms fail and public disclosures do not keep pace with operational reality. Parliamentary oversight is sought to ensure that the regulatory framework provides adequate protection for whistleblowers and that statutory disclosure obligations are enforced with consistency.

> **Closing Submission**
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> *This evidentiary bundle constitutes a formal forensic record submitted in terms of the Protected Disclosures Act, the Financial Markets Act, and the Companies Act.*
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> *The relief sought is not punitive. It is a regularisation of the governance environment: accurate public disclosure, accountability for statutory deductions, and the proper functioning of whistleblower protection mechanisms as contemplated by the legislature.*
>
> *Sr. Wilbur William Matthee | Founder, EthicHawks Forensic Governance & Compliance Consultancy | 22 June 2026*